BEFORE THE MOTOR ACCIDENT CLAIMS TRIBUNAL, KOLHAPUR

M.A.C.P. No. 642 of 2025

(Fictional sample case for demonstration)

Shri Rohan Kulkarni, aged 29 years, resident of Rajarampuri, Kolhapur ... Claimant

versus

1. Shri Sunil Yadav, owner of truck No. MH-09-AB-4521 ... Opponent No. 1

2. Shri Ramesh Gaikwad, driver of the said truck ... Opponent No. 2

3. National Assurance Co. Ltd., insurer of the said truck ... Opponent No. 3

CLAIM PETITION UNDER SECTION 166 OF THE MOTOR VEHICLES ACT, 1988

1. On 22.01.2025 at about 8.30 p.m., the Claimant was riding his motorcycle on the Kolhapur-Sangli road when the truck, driven rashly and at high speed by Opponent No. 2, overtook from the wrong side and hit the motorcycle. FIR No. 37 of 2025 was registered at Shiroli Police Station against Opponent No. 2.

2. The Claimant suffered a fracture of the right femur and a head injury. He was treated at a private hospital for 23 days and spent Rs. 3,20,000 on treatment. The medical board has certified 30% permanent disability of the right leg.

3. The Claimant worked as a sales executive earning Rs. 18,000 per month. He was unable to work for 7 months and says his future earning capacity has fallen because he can no longer travel for field sales.

4. The Claimant claims Rs. 18,50,000 as compensation, with interest at 9% per annum, under the heads of medical expenses, loss of income, future loss of earning capacity, pain and suffering, and loss of amenities.

WRITTEN STATEMENT OF OPPONENT No. 3 (INSURER)

5. The insurer admits that the truck was insured on the date of the accident. It states that the driver's licence was not valid for a heavy goods vehicle on that date, which is a breach of the policy conditions, and that the insurer is therefore not liable to pay.

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6. The insurer further states that the Claimant was not wearing a helmet and was himself negligent, and that the income claimed is not supported by salary slips or income-tax returns.

7. Opponents No. 1 and 2 did not appear despite service and are proceeded ex parte.